

26TRCV00062 26TRCV00062

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C08%2F25%2F2026

Source SHA-256: f2b313abbea0c061f26d2b7482bc5c850655acd05f643d3e41d1b2f0cc586f31

Case Number: 26TRCV00062 Hearing Date: August 25, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 25, 2026

Calendar No.

PROCEEDINGS

Leonard

Joseph Scheiner III v. Volkswagen A.G., et al.

26TRCV00062

1.

Volkswagen A.G.'s

Motion to Quash Service of the Summons and Complaint

2.

Volkswagen A.G.,

et al.'s Demurrer to Complaint

TENTATIVE RULING

Volkswagen A.G.'s Motion to Quash Service of the

Summons and Complaint is granted.

Volkswagen A.G., Volkswagen Group of America, Inc. and South Bay Motors, LLC's Demurrer to Complaint is sustained with 20 days leave to amend, and is moot, in part.

Volkswagen A.G.'s Demurrer to Complaint is moot upon the granting of Defendant's Motion to Quash Service of the Summons and Complaint.

Volkswagen Group of America, Inc and South Bay Motors, LLC's Demurrer to Complaint is sustained with 20 days leave to amend.

Background

Plaintiff filed the Complaint on September 11, 2023. Plaintiff alleges the following facts. Plaintiff alleges that his 2022 Volkswagen Tiguan suffers from electrical, steering, and restraint system defects. Plaintiff sets forth causes of action under the Song-Beverly Act as well as several other causes of action including Violations of Bus & Prof. Code 17200 and 17500 and Negligent Misrepresentation and Fraudulent Concealment.

Motion to Quash

"When a Defendant challenges the Court's personal jurisdiction on the ground of improper service of process the 'burden is on the Plaintiff to prove the facts of effective service.'" *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Plaintiff must meet this burden by a preponderance of the evidence. See *Ziller Elec. Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232.

Plaintiff has the burden to show that sufficient minimum contacts exist between Defendant and California to establish personal jurisdiction. See *Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710; See also *Edmunds v. Superior Court* (1994) 24 Cal.App.4th 221, 230-31. Plaintiff must meet this burden by a preponderance of the evidence. See *Ziller Elec. Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232.

General Jurisdiction

A non-resident defendant may be subject to the forum state's general jurisdiction if the defendant's contacts are substantial, continuous, and systematic. See *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 445. Plaintiff must provide competent evidence to establish that Defendant's connections with California are sufficiently continuous and systematic to impose general jurisdiction. See *Int'l Shoe Co. v. Wash.*, 326 U.S. 310, 317 (1945).

Specific Jurisdiction

"When determining whether specific jurisdiction exists, courts consider the relationship among the defendant, the forum, and the litigation. A court may exercise specific jurisdiction over a nonresident defendant only if: (1) the defendant has purposefully availed himself or herself of forum benefits; (2) the controversy is related to or arises out of the defendant's contacts with the forum; and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice." *Snowney v. Harrah's Ent., Inc.* (2005) 35 Cal.4th 1054, 1062 (internal citations and quotations omitted).

Defendant, Volkswagen A.G. ("VWAG") moves the Court for an order quashing the service of the summons and complaint served by Plaintiff on it for lack of personal jurisdiction and to dismiss the claims against it pursuant to CCP § 418.10. The motion is made on the grounds "that VWAG does not have the minimum contacts with this forum state required under the United States and California Constitutions." (Notice of Motion, p. 2, lines 10-12).

Defendant contends that it is not a California resident and has absolutely no relationship with the state of California. Defendant states that it is organized and has its principle place of Business in Germany, has no contacts in California, and has not purposefully availed itself to conduct business in California. (Declaration, Benjamin Piep, ¶¶ 3-13.) Thus, Defendant asserts that the Court lacks both general and specific jurisdiction over Defendant.

Plaintiff failed to file any written opposition to this motion. Plaintiff has not provided competent evidence of either general or specific jurisdiction. Plaintiff submitted no competent evidence to show that Defendant's contacts with California are systematic, substantial, or continuous for purposes of general jurisdiction. Plaintiff has not provided competent

evidence that Defendant purposefully availed itself of the forum benefits, and that the controversy is related to the Defendant's contacts within the forum. The Court finds that, considering the lack of evidence submitted by Plaintiff, the interests of fair play and substantial justice do not support the imposition of personal jurisdiction.

The Court does note that moving party filed a Reply which appears to indicate that an Opposition was served upon it. However, as noted above, no Opposition was ever filed with this Court.

Therefore, Defendant's Motion to Quash Service of Summons and Complaint is granted.

Meet and Confer Re: Demurrer

Defendants filed a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Shaun Kim, ¶¶ 1-2).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of

action.” (Gressley v. Williams

(1961) 193 Cal.App.2d 636, 643-644.)

“Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.”

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605,

609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing they do not sufficiently apprise a

defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp.

(1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendants demurrer to the fifth through eighth causes

of action for failure to state sufficient facts to state a cause of action. CCP

§ 430.10(e).

Fifth Cause of Action for Violation of Bus. &

Prof. Code 17200

Sixth Cause of Action for Violation of Bus. &

Prof. Code 17500

Defendants’ demurrer to the fifth and sixth causes of

action is sustained with 20 days leave to amend. Plaintiff fails to state facts

sufficient to state a cause of action.

“California Business and Professions

Code Sections 17000, et seq., and 17200, et seq., states [sic] that unfair

competition shall mean and include unlawful, unfair or fraudulent business

practices.” Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th

612, 618–19. “By proscribing ‘any unlawful’ business act or practice, the UCL

“borrows” rules set out in other laws and makes violations of those rules

independently actionable. [Citation.] However, a practice may violate the UCL even

if it is not prohibited by another statute.” Los Angeles Memorial Coliseum

Com. v. Insomniac, Inc. (2015) 233 Cal.App.4th 803, 835. “The unfair

competition law is independent of the Unfair Practices Act and other laws. Its

remedies are “cumulative ... to the remedies or penalties available under all

other laws of this state” (§ 17205), but its sanctions are less severe than

those of the Unfair Practices Act. Prevailing plaintiffs are generally limited

to injunctive relief and restitution. (§ 17203; see ABC Internat.

Traders, Inc. v. Matsushita Electric Corp. (1997) 14 Cal.4th 1247,

1268 [61 Cal.Rptr.2d 112, 931 P.2d 290].) Plaintiffs may not receive damages, much less treble damages, or attorney fees.” Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 179.

“Restitution under section 17203 is confined to restoration of any interest in “money or property, real or personal, which may have been acquired by means of such unfair competition.” (Italics added.) A restitution order against a defendant thus requires both that money or property have been lost by a plaintiff, on the one hand, and that it have been acquired by a defendant, on the other. But the economic injury that an unfair business practice occasions may often involve a loss by the plaintiff without any corresponding gain by the defendant, such as, for example, a diminishment in the value of some asset a plaintiff possesses. Such injuries satisfy the plain meaning of section 17204’s “lost money or property” requirement, qualify as injury in fact, and would permit a plaintiff to seek an injunction against the offending business practice even in the absence of any basis for restitution. [¶] This leads to a larger point: To make standing under section 17204 dependent on eligibility for restitution under section 17203 would turn the remedial scheme of the UCL on its head. Injunctions are “the primary form of relief available under the UCL to protect consumers from unfair business practices,” while restitution is a type of “ancillary relief.” Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 336–337 (internal citations omitted).

Bus. & Prof. Code § 17500

states, in relevant part: “It is unlawful for any person . . . with intent directly or indirectly to dispose of real or personal property or to perform services . . . to make or disseminate or cause to be made or disseminated before the public in this state, or to make or disseminate or cause to be made or disseminated from this state before the public in any state, in any newspaper or other publication, or any advertising device, or by public outcry or proclamation . . . any statement, which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading, or for any person . . . to so make or disseminate or cause to be made or disseminated any such statement as part of a plan or scheme with the intent not to sell that personal property or those services . . . so advertised at the price stated therein, or as so advertised.”

Plaintiff has failed to allege facts demonstrating an inadequate

remedy at law to seek equitable relief under these causes of action. In addition, Plaintiff has not alleged sufficient facts of injury in fact.

Thus, the demurrer to the fifth and sixth causes of action is sustained with 20 days leave to amend.

Seventh Cause of Action for
Negligent Misrepresentation

Eighth Cause of Action for
Fraudulent Concealment

Defendants' demurrer to the seventh and eighth causes of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient specific facts to state a cause of action.

"For a claim of negligent misrepresentation, [a] plaintiff must prove the following in order to recover[:]: [M]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage." *Goonewardene v. ADP, LLC* (2016) 5 Cal.App.5th 154, 175. Negligent misrepresentation is a species of fraud and requires specificity in pleading. See *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184-85.

A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages." *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or suppressed fact, and (5) as a result of

the concealment or suppression of the fact, the plaintiff must have sustained damage.” *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.

“Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.” *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157. Plaintiff must state facts which “show how, when, where, to whom, and by what means the representations were tendered.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.

Plaintiff fails to state the requisite specific facts to state the cause of action for Negligent Misrepresentation and Fraudulent Concealment, including specific facts as to who made the misrepresentation, when it was made, where it was made, and by what means it was made.

As to the fraudulent concealment cause of action, Plaintiff fails to plead specific facts to allege an intentional concealment of a material fact and intent to defraud. Plaintiff has set forth mere conclusions.

Defendants’ demurrer to the seventh and eighth causes of action is sustained with 20 days leave to amend.

Defendants are ordered to give notice of this ruling.